Office of the New York State Attorney General

Letitia James Attorney General

August 11, 2025

Hon. Julian Schreibman, J.S.C.
Ulster County Courthouse
285 Wall Street
Kingston, NY 12401

Re: *Matter of Citizen Action of New York, et al. v NYS Department of Environmental Conservation*; Index No. 903160-25

Dear Justice Schreibman:

This office represents respondent-defendant New York State Department of Environmental Conservation (DEC) in the above-referenced proceeding. At the conclusion of the July 25, 2025 oral argument in this matter, the Court noted that it would consider further correspondence related to new developments. This letter addresses two categories of new developments: (1) the publication of the 2025 Draft New York State Energy Plan by the New York State Energy Planning Board on July 23, 2025 and (2) additional actions by the federal government that impede New York's efforts to achieve the Climate Leadership and Community Protection Act's (the Climate Act) goals in a timely manner. As explained below, analysis in the draft plan and increasingly significant federal impediments both further support DEC's argument that a 40% reduction in greenhouse gases by 2030 based upon the Climate Act's scope and accounting methodology, including with respect to increases of out-of-state emissions and the potential for carbon leakage, is currently infeasible. As a result, discretion warrants denying petitioners' request for mandamus relief as it would order DEC to damage the public interest by imposing unanticipated and undue costs on New Yorkers.

As background on the draft state energy plan, New York's Energy Law establishes the Energy Planning Board and charges it with periodically developing and adopting a state energy plan.[1] A state energy plan must satisfy a number of energy-planning goals, forecasting energy supplies, demand and policy considerations for at least a ten-year period.[2] Among its many tasks, the Board assesses energy costs for consumers and, more specifically, low-income consumers.[3]

[1] *See generally* Energy Law §§ 6-102, 6-104.
[2] *See id.* § 6-104(2).
[3] *See id.*

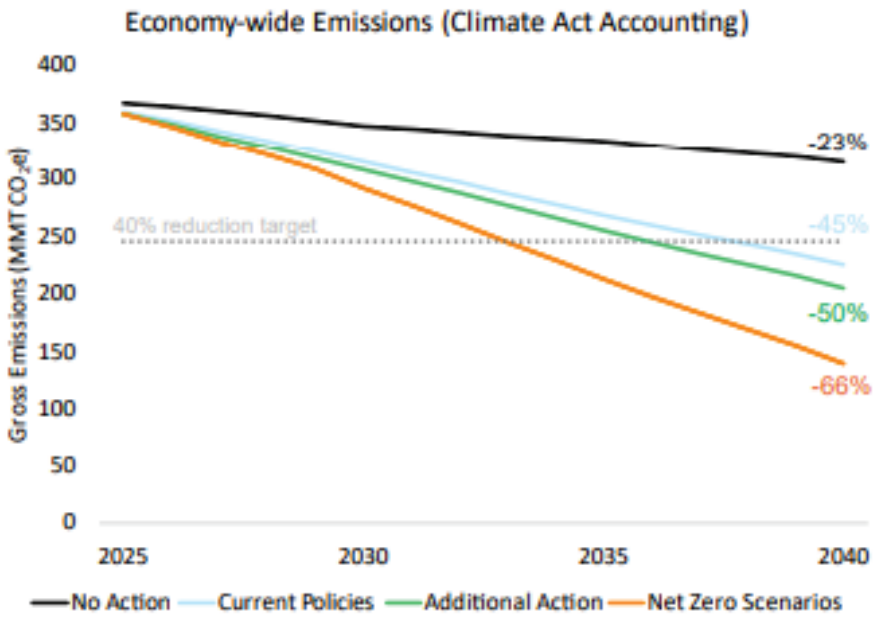
The Board is comprised of fourteen members, including two voting members respectively selected by each house of the New York State Legislature.[4] Before issuing a final state energy plan, the Board prepares a draft energy plan for public consideration and input.[5] At its July 23, 2025 meeting, the Board unanimously voted in favor of publishing the 2025 Draft Energy Plan for public consideration and comment. The draft plan provides a fifteen-year forecast—to 2040.

Both legislative appointees voted in favor of issuing the draft plan for comment. Before casting their vote in support, one of the legislative members stated that "much ha[d] changed" since they had voted in 2019 for the Climate Act.[6] The headwinds they specifically referenced included wars in Ukraine and the Middle East, the Covid pandemic, the "supply-chain breakdown," inflation, and "uncertainties and challenges from the federal government."[7] On the latter topic, the elected official elaborated that the "current administration's attacks on offshore wind projects and recent cuts to federal tax credits to renewable energy and electric vehicles are simply unprecedented."[8] They concluded that the draft plan is meant to provide a "roadmap" to achieve "a reliable, affordable, and clean energy system by 2040."[9] Of note, the draft plan was developed prior to many of the federal government's recent changes in law and policy that dramatically impact the energy sector and obstruct renewable energy projects and programs.[10]

The draft plan itself shows that a 40% greenhouse gas reduction from 1990 levels by 2030 is infeasible under the Climate Act's accounting methodology and unaffordable for consumers. The draft plan specifically looks at five scenarios, none of which achieves the 2030 goal. As well as no action and current policy scenarios, an additional action scenario projects further adoption of greenhouse gas reducing policies.[11] The most aggressive projections, the two net zero scenarios, reflect what would be needed for full achievement of 2050 emission reduction targets.[12] As the chart below shows, the most aggressive projection—which would require imposing extraordinary and damaging costs upon New Yorkers—has New York achieving a 40% reduction in greenhouse gas emissions in 2033.[13]

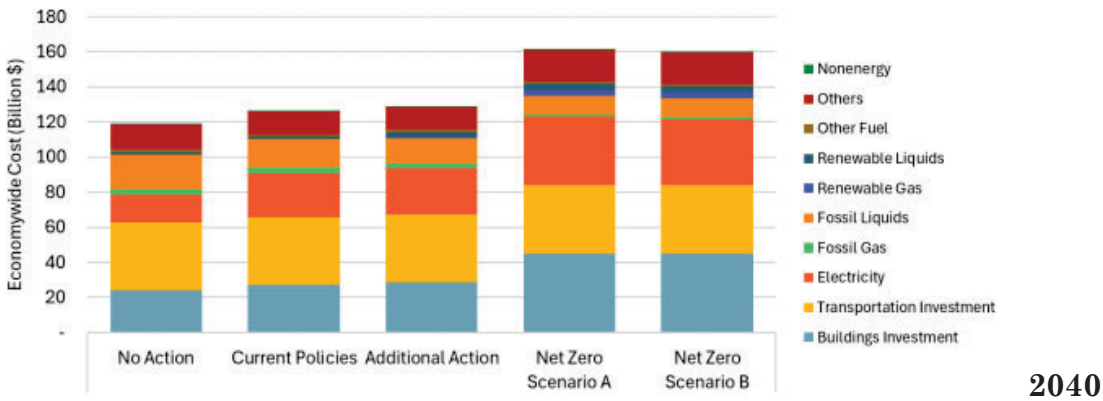
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[4] *See id.* § 6-102(1).
[5] *See generally id.* § 6-106(2)(k).
[6] YouTube, New York State Energy Planning Board Meeting – July 23, 2025 [02:14:20-02:16:00], *available at* https://www.youtube.com/watch?v=Lc6B3ScXFs8.
[7] *Id.*
[8] *Id.*
[9] *Id.*
[10] The assumptions underlying the draft plan were set in March 2025. *See* New York State, Volume 1: Summary for Policy Makers, Draft 2025 New York State Energy Plan, at 2 (July 2025), *available at* https://energyplan.ny.gov/Plans/Draft-2025-Energy-Plan
[11] *Id.* at 21.
[12] *See id.*
[13] *See id.* at 25.



Economy-wide Emissions for all Pathways[14]

As the chart below illustrates, while New York's current policies and additional action would be expected to raise economywide costs for the state energy system in 2040 by less than 10%, the two net zero scenarios the Board considered raise energy-system costs by at least 35% in 2040, which is $42 billion in additional costs for that year alone.[15]



2040 Gross Annual Costs by Scenario (2024$)[16]

Ordering achievement of the 2030 target would equate to even higher costs than the net zero scenarios and would affect consumers even sooner. Undoubtedly,

[14] *See id.* at 25.
[15] *See id.* at 26-27.
[16] *See id.* at 27.

greenhouse-gas reducing policies can lead to longer-term benefits such as health improvements.[17] This does not, however, offset the insurmountable upfront costs that New Yorkers would face if DEC were forced to try to achieve the Legislature's aspirational emissions reductions by the 2030 deadline rather than proceeding at an ambitious but sustainable pace.

Consider the issues of electricity generation and load. As the draft plan makes clear, "[i]n all pathways scenarios, new large loads interconnecting to the system drive growing electricity demand, across both annual loads and peaks."[18] Loads are expected to grow because of "electrification of transportation and buildings," with the net-zero scenarios showing large projected increases in annual and peak loads.[19] Increased electrical *usage* in those areas thus will mean more need for electrical generation that is reliable: "Meeting this growing electricity load, while maintaining system reliability, will require investments in expansion of the electricity system in all pathways."[20] Further, as the draft plan states: "There is uncertainty as to whether the continuous growth in clean energy supply resources will meet growing demand given the federal policy context, broader economic headwinds, and the need for new clean firm technologies to become commercially available."[21]

Projections about heat pump adoption serve as one practical example of the substantial gap between the pace of change needed to achieve Climate Act targets and an ambitious but achievable path represented by the additional action scenario. The most aggressive net zero scenarios—which still do not meet the 2030 emissions-reduction goal—identify that nearly 50% of all residential heating equipment sales by 2030 would need to be electric heat pumps.[22] This projection is approximately five times the level of deployment the no action scenario projects for the same year.[23] And by 2035, the net zero scenarios assume 100% of sales of residential heating equipment will be heat pumps. That is still an insufficient trajectory for the Climate Act's 2030 goal. What is more, as the analysis notes, "[t]he cost of energy upgrades as well as energy and housing costs in general are acute challenges for [low-and-moderate income] households, affordable housing property owners, and building owners in disadvantaged communities who lack financial and capital resources to make these investments."[24]

Electric vehicles provide another example. While current policies would place the state on track to have all medium and heavy-duty vehicle sales be fully zero

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[17] *See id.* at 26-27.
[18] *Id.*, at 22.
[19] Id.
[20] Id.
[21] Id. at 28.
[22] New York State, Draft 2025 Energy Plan, Volume 2, Chapter 16: Pathway Analysis, at 5.
[23] See *id.*
[24] New York State, Draft 2025 Energy Plan, Volume 2, Chapter 8: Buildings, at 17.

emission by 2049, the net zero scenarios entail achieving that goal by 2040.[25] These individual factors must be considered against the state-wide pace of electricity load-growth, which implicates an electricity transmission and distribution system that needs significant upgrades in addition to ongoing maintenance. The current policies and additional action scenarios require an 11-14% increase in electric consumption compared to the no action scenario. But the growth in electric generation required for net zero scenarios exceeds 50% by 2040.[26]

In sum, under even the most aggressive scenario the State Energy Planning Board considered—one that by 2040 would lead to an added $42 billion in annual energy costs—New York would not meet the Climate Act's 2030 goal. While the draft plan shows that ambitious progress under the Climate Act is achievable, the 2030 goal itself is not practically feasible due to costs consumers simply cannot bear.[27]

The challenge of timely progress that is laid out in the draft plan is made all the more difficult by ongoing federal action that undermines New York's emissions-reducing efforts. Since DEC noted this issue in its papers and since I discussed it at oral argument, the federal government has taken additional action to impede greenhouse gas reductions by all states acting within their own authorities to determine energy resources, including deploying renewable energy to reduce greenhouse gas emissions.

As expected and as I previewed during oral argument, U.S. EPA announced on July 29 that it will revoke its "endangerment finding"—the 2009 conclusion that carbon dioxide and other greenhouse gases are a form of air pollution that EPA can regulate under the Clean Air Act because they contribute to climate change and pose a danger to human health and welfare.[28] That finding has been the underpinning for a whole host of federal and federally-authorized state climate actions, including regulations limiting greenhouse gas emissions from motor vehicles, which in New York are the second largest sector of emissions, after the building sector. Indeed, at the same time it announced it will revoke the endangerment finding, EPA also announced that it intends to rescind all greenhouse gas emissions limits from motor vehicles, compounding the harm from Congress's May 2025 rescission of the federal preemption waivers under Section 177 of the Clean Air Act. That provision of the Clean Air Act is the legal authority for New York's regulation of greenhouse gas emissions of motor vehicles under the Advanced Clean Cars and Advanced Clean Trucks rules, which underpin the previously anticipated greenhouse gas emission reductions from requiring a

[25] See *id.* at 8.
[26] See *id.* at 38.
[27] Notably, the Legislature directed DEC to ensure that Climate Act regulations "minimize costs and [] maximize the total benefits to New York" (ECL 75-0109[3][1]).
[28] Notice of Proposed Rulemaking, 90 Fed. Reg. 36,288 (Aug. 1, 2025).

percentage of medium- and heavy-duty vehicles to comply with zero-emission standards starting in model year 2025.[29] These limits have largely driven car manufacturers' shift toward electric vehicles, which New York has relied upon in its greenhouse gas modeling for the transportation sector.[30] Thus, the previously anticipated greenhouse gas emissions reductions from federal motor vehicle programs in New York are completely in jeopardy due to the actions of the current federal administration.

Additionally, just last Thursday, U.S. EPA terminated all grants in a national $7 billion Solar for All program to deploy solar energy, with New York receiving $250 million. New York currently ranks as the leading state for these community solar installations, and the loss of this program, as well as other actions, is a significant setback to continued growth of the industry in the state. And New York's clean energy industries will face increasingly negative impacts from the implementation of H.R. 1, commonly referred to as the "One Big Beautiful Bill Act," signed into law on July 4, 2025, which terminated consumer tax credits for renewable energy, energy efficiency improvements, and electric vehicles. In light of these major recent developments and irrespective of whether they ultimately are legally sustained or vacated, DEC and other state agencies will necessarily rework their statewide greenhouse gas analyses to better evaluate the scope and nature of reductions they will need to impose to reach the Climate Act's goals in an economically sustainable manner.

As I discussed at oral argument, the quintessential scenario in which a court should exercise its discretion and decline to issue a mandamus order is when mandamus could cause "damage to the public interest."[31] Petitioners have not shown a plausible scenario where the 2030 greenhouse gas reduction goal can be achieved without inflicting unanticipated and undue harm on New York consumers, and the concrete analysis in the 2025 Draft Energy Plan dispels any uncertainty on the topic: New Yorkers will face alarming financial consequences if speed is given preference over sustainability. Because the public interest weighs heavily against any order of mandamus, I reiterate DEC's request that the petition be denied and the proceeding dismissed.

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[29] *See id.*

[30] *See, e.g.,* New York State Climate Action Council Scoping Plan at R2867-2868, NYSCEF Doc. No. 43.

[31] *Matter of Ahern v Board of Supervisors of Suffolk County*, 6 NY2d 376, 382 (1959). Moreover, *Klostermann v Cuomo* (61 NY2d 525 [1984]) and *Matter of New York Pub. Interest Research Group v Dinkins* (83 NY2d 377 [1994]) did not overturn *Ahern*. *Klostermann* was expressly about justiciability, rather than the merits, and neither of those cases foreclose the trial court's ability to exercise its discretion not to issue an order of mandamus when such an order would cause damage to the public interest (*see also Matter of Natural Resources Defense Council v New York City Dept. of Sanitation*, 83 NY2d 215, 224-225 [1994] [noting "factor to be considered in a court's exercise of discretion in granting mandamus").

Thank you for your consideration of this new information.

Sincerely,

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cc: All counsel
Via NYSCEF